

FILED BY: CAPITAL ONE, N.A.

***TENTATIVE RULING**

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. There is a proof of service indicating notice by mail of the motion and hearing, but there is no evidence corroborating that the mailing address is in fact that of Defendant. Defendant never filed an Answer, and there is no acknowledgement of receipt of the notice of this motion.

Thus, this court finds that Plaintiff has failed to properly notify Defendant of this motion and its hearing.

Disposition

Motion will be continued to 10/20/26, 9am.

Plaintiff is ordered to properly notify Defendant of the motion as well as the date of the hearing.

10. 9:00 AM CASE NUMBER: L25-10658

CASE NAME: JPMORGAN CHASE BANK N.A. VS. GRANT GANQUET

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Exhibit One of their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

11. 9:00 AM CASE NUMBER: L25-10679

CASE NAME: JPMORGAN CHASE BANK N.A. VS. GRANT GANGUET

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED; MEMORANDUM IN SUPPORT OF MOTION**

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Exhibit One of their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at